

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Feit	Team: Squad #06	CCRB Case #: 201504004	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/18/2015 4:30 PM	Location of Incident: West 42nd Street - Times Square Subway Station	18 Mo. SOL 11/18/2016	Precinct: 14		
Date/Time CV Reported Tue, 05/19/2015 2:40 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/19/2015 2:40 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POF Guerline Cadet	29471	937620	TB DT01		
Officer(s)	Allegation	Investigator Recommendation			
A . POF Guerline Cadet	Discourtesy: On an unknown date and on May 18, 2015, PO Guerline Cadet spoke rudely to § 87(2)(b)	A . Unsubstantiated			

Case Summary

On May 19, 2015, § 87(2)(b) filed this complaint with the CCRB via phone. On an unknown date and time approximately 2 to 3 months ago, § 87(2)(b) was selling churros on the 7 train uptown platform of the 42nd Street Time Square subway station in Manhattan. PO Cadet approached § 87(2)(b) and said, “Take your shit, every day with this shit, take your shit and go” (**Allegation A**). There were no summonses or arrests as a result of this interaction.

Further, on May 18, 2015, § 87(2)(b) was selling churros on the ramp in between the 7 uptown subway and the 1/2/3 subway of the 42nd Street Time Square subway station in Manhattan. PO Cadet approached § 87(2)(b) and said, “You remember me fucking lady?” (**Allegation A**). § 87(2)(b) was arrested as a result of this incident for § 87(2)(b)

Mediation, Civil, and Criminal Histories

This case is unsuitable for mediation as § 87(2)(b) was arrested. On May 28, 2015, an inquiry was sent to the NYC Comptroller’s Office to check if § 87(2)(b) has filed suit (Board Review 01). To date, no response had been received. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- PO Cadet had been a member of the NYPD for 10 years and there are no substantiated CCRB allegations against her.
- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 03).

Findings and Recommendations

Explanation of Subject Officer Identification

PO Cadet acknowledged interacting with § 87(2)(b) she was the only officer on scene, and she is the arresting officer on § 87(2)(b)’s arrest report. § 87(2)(g)

Allegation A – Discourtesy: On an unknown date and on May 18, 2015, PO Guerline Cadet spoke rudely to § 87(2)(b)

In her CCRB statement on May 20, 2015, § 87(2)(b) alleged that PO Cadet said to her, “Take your shit, every day with this shit, take your shit and go” on an unknown date, and “You remember me fucking lady” on May 18, 2015 (Board Review 04). In PO Cadet’s CCRB statement on May 27, 2015, PO Cadet remembered the incident but stated that it was § 87(2)(b) that used profanity on May 18, 2015 and said, “Stupid Black, stupid bitch.” PO Cadet denied the allegation (Board Review 05). § 87(2)(g)

As such, it is recommended that **Allegation A** be closed as *unsubstantiated*.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date